

CBI

With states reluctant to undertake police reforms and eager to pass even trivial cases on to the CBI, the Central investigating agency becomes a fire-fighting squad

NOIDA DOUBLE MURDERS

Aarushi Talwar, 14, was found with her throat slit in the bedroom of her Noida home on May 15. The body of the family servant Hemraj was found on the terrace two days later by a retired police officer.

WHY IT WAS HANDED OVER TO CBI: Noida police bumbled through the investigation, changing three investigating officers in quick succession. Three IPS officials on the specially formed SIT were transferred by the Mayawati Government. The Noida police failed to gather evidence from the crime scene and termed it as an "honour killing", which created a public outcry. The yet-to-be-solved case was handed over to the CBI 15 days later.



SCARLETT KEELING

The 15-year-old British girl was allegedly raped and murdered on a Goa beach in February. Police first said she had accidentally drowned but were forced to register a homicide case after her mother intervened.

WHY IT WAS HANDED OVER TO CBI: Four months later, her case was handed over to the CBI for investigation at the request of the state government. Scarlett's mother accused the local police of shielding the killers and alleged that they had a nexus with the drug mafia and politicians.

UTTAR PRADESH'S CBI HOTLINE

The Mayawati Government has recommended nine cases—most of them politically sensitive—to the CBI in the past year

CASES	STATUS
Police recruitment scandal	Rejected, but taken up later
Noida land allotment scandal	Yet to take up formally
Foodgrain scandal	Rejected by CBI
Dowry complaint against the Union HRD minister	Rejected by CBI
BSP MLA Raju Pal murder case	Investigation on
BJP CD case	Rejected
Shashi murder case	Rejected
Kidney transplant scandal	Accused chargesheeted
Aarushi and Hemraj double murder case	Investigation on

member of the national commission on police reforms.

The Haryana Police has been routinely approaching the CBI even in ordinary crime cases to dodge public ire and earn political brownie points. Take, for instance, the public outcry over the death of college-going sisters Manju, 18, and Mithilesh, 17, of Prithala village in Faridabad district. Their mutilated bodies were recovered from the railway track near Ballabgarh on December 18, 2007. While the police put it aside as a case of suicide, forensic examination by the Post Graduate Institute of Medical Education and Research at Rohtak reported "rape", fuelling the allegations by their family and villagers that both were murdered and then thrown on the tracks. The victims' family blamed an influential Congressman. Hooda overruled the police and ordered a CBI probe.

Even the CBI, which is short of 1,336 personnel, has become wary of state governments' recurring requests. Three months ago, Hooda promised a CBI inquiry into the alleged "mass suicide" by nine members of businessman Mam Chand's family. His hasty promise to institute a CBI inquiry within a fortnight (by April 15) was aimed at pacifying the anger in the politically-influential trading community. Three months later, the Central agency refused to take up the inquiry saying it was overburdened. The state Government has written to the CBI again while police investigations are hanging fire.

In Kerala, the *CBI Diary* film franchise—four Malayalam films since 1988, all starring Mammooty in the role of a CBI supercop—has lent the agency an aura, which explains the public pressure on the state Government to hand over routine cases to the agency. Recent cases include the death of a 16-year-old girl in the Kilrur sex racket, the collective suicide by a family in Kaviyoor and the disappearance of seven-year-old Rahul in Alappuzha. Cases from the states as yet make up only a minuscule percentage—last year, for instance, only 34 of the 940 cases the agency handled were from the states. But it is the peculiar nature of some of these cases that creates problems in solving crimes.

The CBI cannot unilaterally take